

common representative is no longer participating in the proceedings, a new common representative shall be determined pursuant to R. 100 EPC 1973.

In order to safeguard the rights of the patent proprietor and in the interests of procedural efficiency, it has to be clear throughout the procedure who belongs to the group of common opponents or common appellants. If either a common opponent or appellant (including the common representative) intends to withdraw from the proceedings, the EPO shall be notified accordingly by the common representative or by a new common representative determined under R. 100(1) EPC 1973 in order for the withdrawal to take effect.

G 3/99 was applied in T 1154/06 in connection with the necessity of appointing a professional representative if the first-named of multiple patent proprietors was not resident in a contracting state. (See R 18/09, in which the Enlarged Board referred to these two decisions and held that both the principle that a plurality of persons acting in common must be treated as a single party (a "group party") and the requirement that such a group party acts through a common representative apply to petition proceedings.)

In T 1654/13 it was submitted that the appeal filed by the common representative of the joint patent proprietors had to be understood as having been filed on behalf of both patent proprietors as joint appellants. The wording used in the notice of appeal, referring only to the first of the two patent proprietors, i.e. Unilever N.V., thus had to be understood only in relation to the request for the reduction of the appeal fee. The board, citing Art. 118 EPC and calling to mind R 18/09 and T 1154/06, decided that there was no doubt that Unilever N.V. and Unilever PLC were joint appellants. The appeal was admissible.

In decision T 1366/04 the appeal had been filed by the first of two joint patent proprietors only. The board held that the requirements of Art. 118 EPC were met and that there was no doubt about the identity and appellant status of the two patent proprietors.

Decision T 418/07 concerns a different case, where shortly before the oral proceedings the respondent (patent proprietor) appointed a second firm of representatives as joint representatives in addition to the firm already acting and asked the board to send copies of all correspondence to both firms. In this case of **multiple representatives**, the board held that while it is open to a party to appoint as many representatives as it may wish, the board is not aware of any requirement on it or on other parties to send correspondence to more than one representative of one party. If a party wants to retain multiple representatives, it must make its own arrangements for copying correspondence to them all. Parties cannot expect the board to provide copying services for their convenience.

See also J 35/92 (common professional representative appointed; application withdrawn) and J 10/96 (appointed common professional representative withdrew from case during the proceedings).

4. Authorisations for appointment of a representative

At various points in the following sections there are references to the issue of whether an authorisation actually exists, a problem in a number of cases.

4.1. Filing of the authorisation

R. 101 EPC 1973 has been redrafted as R. 152 EPC 2000. R. 152(6) EPC, in particular, now reads: "If a required authorisation is not filed in due time, any procedural steps taken by the representative, other than the filing of a European patent application, shall be deemed not to have been taken, without prejudice to any other legal consequences provided for by this Convention." See also the decision of the EPO President dated 12 July 2007 on the filing of authorisations (OJ SE 3/2007, 128, L.1.), and J 8/10 (OJ 2012, 470).

Under R. 152(1) EPC and Art. 1(1) of the EPO President's decision (OJ SE 3/2007, 128, L.1.), professional representatives whose name appears on the EPO's list and who identify themselves as such need file a signed authorisation only in certain specified circumstances (change of representative without notification that the previous representative's authorisation has terminated or where the EPO has doubts about the representative's entitlement to act), T 1204/13 (see also T 548/13).

In T 1105/16 the board stated that, even if Mr K. (a professional representative) were acting as an employee of the patent proprietor, a signed authorisation would not be required since an employee has to file a signed authorisation only if the employee is not a professional representative (see Art. 3 decision of the President, (OJ SE 3/2007, 128, L.1.).

In T 924/17 the new representative filed in due time on 6 June 2017 a signed authorisation, following the invitation by the EPO according to R. 152(2) EPC. The authorisation bore a signature with date of 23 May 2017, i.e. after lodging the notice of appeal. The board stated that there was no requirement for the signature's date to be prior to the filing date of the notice of appeal, let alone a requirement that any procedural step taken before the signature's date be explicitly approved in the signed authorisation. This would be tantamount to requiring proving the existence of a previous informal oral or written authorisation, which entitles the representative to act on behalf of a party ("Bevollmächtigung") and further, this would also be contrary to the intended purpose of R. 152(2) EPC, which is clearly to allow to remedy the missing filing of the authorisation, as it appears implicit and evident that the authorisation generally relates to and encompasses any action by the new representative during specific ongoing proceedings before the EPO.

In J 12/88 it turned out that the former representative of the appellant had acted before the EPO on behalf of the appellant without being instructed to do so and using a forged authorisation. The board considered all these proceedings to be null and void. All fees paid to the EPO on behalf of the appellant never had been due and had to be reimbursed.

In T 850/96 the appellant had alleged that the opposition was not admissible because the signatories of the notice of opposition did not file an authorisation. According to him an employee must declare with the notice of opposition that he acts as a professional representative. Otherwise he must file an authorisation. In the case under consideration both signatories of the notice of opposition were professional representatives. The board

held that Art. 1(1) of the decision of the President of the EPO of 19 July 1991 (OJ 1991, 489) stipulates that a professional representative whose name appears on the list maintained by the EPO **and who identifies himself as such** shall be required to file a signed authorisation only in the circumstances set out in Art. 1(2) and (3) of this decision of the President (now decision of 2007, OJ SE 3/2007, 128, L.1.). In the case at issue, the deficiency had not been the lack of a signed authorisation, but the failure of the signatories of the notice of opposition to identify themselves as professional representatives (see also T.1744/09 citing T.850/96 saying that a professional representative identifying himself retroactively is not precluded).

In T.425/05, the respondent (patent proprietor) requested the board at the start of the procedure to declare the appeal inadmissible, on the one hand because it had been filed at a date when the original opponent (company I) had been dissolved and had therefore ceased to have legal existence, and on the other because the mistake in the notice of appeal could not be a mere clerical error on the part of the professional representative which could easily be corrected, since the representative manifestly could not act on behalf of company F, which had not yet authorised him to do so. The board began by establishing that the representative's authorisation to act on behalf of company I had never been contested or rescinded. It was equally evident that the original opponent, company I, no longer had legal existence, as it had been dissolved and its assets had passed into the hands of company F, its associate and sole shareholder. The board concluded that company F had succeeded company I as opponent, and therefore also as the client of the representative. Thus the appeal filed by the representative, whose authorisation, confirmed in the meantime, had never been rescinded, had been implicitly, but necessarily, filed on behalf of his actual client, company F; the identification of company I as the opponent in the notice of appeal was due to a clerical error which had since been corrected.

In T.267/08 a change of representation had been notified by the new representative together with the notice of appeal. The previous representative had not contacted the EPO to indicate that his authorisation had terminated. The decision of the President of the EPO (OJ SE 3/2007, 128, L.1.) stated that in cases of a change of representation, and where the EPO had not been notified of the termination of the previous representative's authorisation, "the new representative must file, together with the notification of his appointment, an individual authorisation (original and one copy) or a reference to a general authorisation already on file. If he does not, he shall be requested to do so within a period to be specified by the EPO." In the case at issue, the board invited the new representative under R.152(2) EPC to file an authorisation, as the board had realised that the authorisation failed to name the correct opponent. The new representative sent the authorisation by fax but failed to file the original version. The board stated that the filing of a valid authorisation for the opponent must, of necessity, entail the **filing of the original**, and a professional representative should know this. The legal consequence of this was that the procedural steps taken by the new representative were deemed not to have been taken (R.152(6) EPC). Consequently the notice of appeal was deemed not to have been filed and an appeal did not exist.

In T.637/09 the appellant informed the board and the respondent that Mr M, who was already acting as its professional representative, would be joined by Mr S, another professional representative. Mr S's authorisation to represent the appellant was challenged by the respondent at the start of the oral proceedings. The board observed that under R.152(10) EPC a party may be represented by **several representatives** acting jointly. Mr S was not required to file a signed authorisation in order to be able to represent the appellant. There was no need to file a (further) authorisation under Art. 1(3) of the decision of the President of the EPO (OJ SE 3/2007, 128, L.1.). The board concluded that Mr S was duly authorised to represent the appellant along with Mr M.

The board in T.1700/11 ruled that if a European representative files an opposition on behalf of a party but fails to file a signed authorisation in due time in response to a request to do so from the board, the opposition is deemed not to have been filed (R.152(1) and (6) EPC). The board held that this legal fiction resulted in a loss of rights (R.112(1) EPC) and that an examination of the admissibility of the opposition, which had not been filed according to the legal fiction, was out of the question.

In case J.19/13 the representative who electronically signed the request for grant (EPO Form 1001E) was not a valid signatory for the applicant. A procedural act performed by a non-entitled person is to be treated in the same way as a missing signature. For the electronic filing of a document accompanied by the electronic signature of an unauthorised person, the same principle applies, as confirmed, for instance, in T.1427/09 of 17 November 2009. Therefore, the request for grant form was to be considered not signed.

4.2. General authorisations

This subsection deals inter alia with the extent of the powers conferred.

In J.9/99 (OJ 2004, 309) the board decided that the Legal Division had authority to check the authorisation of a representative named in a general authorisation and to issue a formal decision to reject the registration of a general authorisation. A decision not to register a general authorisation can only be issued in respect of a request from a party to the proceedings within the meaning of R.101(2) EPC 1973, i.e. either an authorising or an authorised party.

In J.11/93 the applicant submitted in his statement of grounds of appeal that the official communication should have been sent to the authorised European representative since he had been duly empowered to act on behalf of the applicant by a general authorisation filed with the EPO in respect of another European patent application. Instead of this the communication was sent directly to the applicant, a US company. The board confirmed that the authorisation in suit had never been registered by the EPO as being a general one, and that even if it had been so registered it would then have been incumbent on the applicant to communicate the number allotted to the general authorisation so that the Receiving Section could take it into consideration before sending the communication to the applicant at its last known address, rather than to the representative. Under these circumstances the board considered that when the letter sent directly to the applicant was issued no European professional representative had yet been appointed by the applicant.

In J.17/98 (OJ 2000, 399) the Legal Board of Appeal had to rule on whether communications concerning the deemed withdrawal of applications had been correctly notified to the applicants, who were residents of a non-EPC contracting state, even though general authorisations were held by the EPO on their behalf. The applicants argued that the communications relating to deemed withdrawal should in fact have been notified to the representatives appearing in the general authorisations on file with the EPO. The board held that the filing of a general authorisation to act on behalf of a specific applicant and the notification of the appointment of a representative in an individual application were two **separate** procedural acts. By definition, general authorisations did not refer to specific cases and did not allow the EPO to assume, without further information from the applicant, that a specific representative had been appointed in a particular case. From the Convention it was clear that the filing of a general authorisation did not imply the appointment of a professional representative in a specific case (see also chapter III.S.2. "Notification to representatives").

In J.1/04, the relevant question in this case was whether the notifications of the communications were correctly addressed to the appellant. The appellant criticised the EPO's practice of sending communications directly to the applicant, even if the latter had appointed a national representative in the international phase. The board pointed out that an authorisation for the international phase did not comprise an authorisation for the European phase and that disregard thereof could lead to a loss of rights. Furthermore, as long as the applicant did not appoint a representative who was entitled to represent him before the EPO, the general principle applied that procedural acts had to be performed by the EPO in relation to the registered applicant as being the party to the proceedings. Thus, notifications had to be addressed to the registered applicant and they had been correctly made if they were addressed to the applicant (appellant) in the case at issue. The appeal was dismissed.

In T.1865/07, the board noted that, in the circumstances of the case, giving an incorrect general authorisation number was of no consequence.

4.3. Sub-authorisations

In T.227/92 it was held that a sub-authorisation from a professional representative to a person who was not a professional representative within the meaning of Art. 134 EPC 1973 was invalid. The latter person's role was therefore limited to that of technical adviser to the professional representative.

In T.382/03 the previous representative, Mr E. of UDL, filed a fax to announce that Mr U., who was not a member of that association, would appear for respondent 1 at the oral proceedings before the board. Mr E. did not notify the board that his association's authorisation was terminating. Hence, that was a situation where the President's decision required the new representative, Mr U., to prove that he was authorised to act on behalf of respondent 1. As Mr U. did not refer to a general authorisation from respondent 1, proof of an individual authorisation had to be provided to the board. In principle, that could be done by filing a direct individual authorisation from opponent 1, or by filing a sub-authorisation from an authorised representative who was entitled to sub-authorise a third